



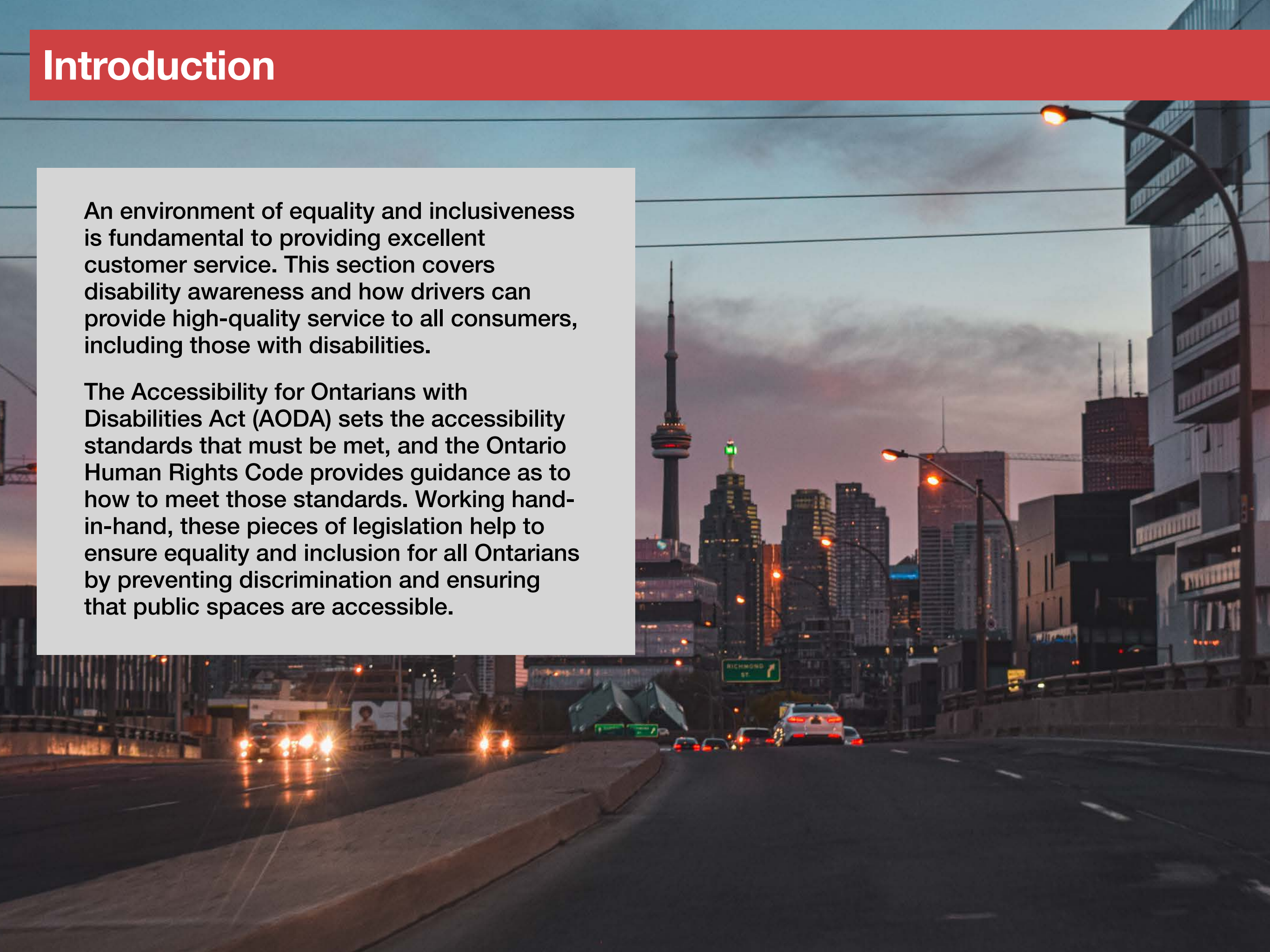
Providing Service to Accessible Users

Vehicle-for-Hire Training

Introduction

An environment of equality and inclusiveness is fundamental to providing excellent customer service. This section covers disability awareness and how drivers can provide high-quality service to all consumers, including those with disabilities.

The Accessibility for Ontarians with Disabilities Act (AODA) sets the accessibility standards that must be met, and the Ontario Human Rights Code provides guidance as to how to meet those standards. Working hand-in-hand, these pieces of legislation help to ensure equality and inclusion for all Ontarians by preventing discrimination and ensuring that public spaces are accessible.



Section 01

Disability Awareness

01 Disability Awareness

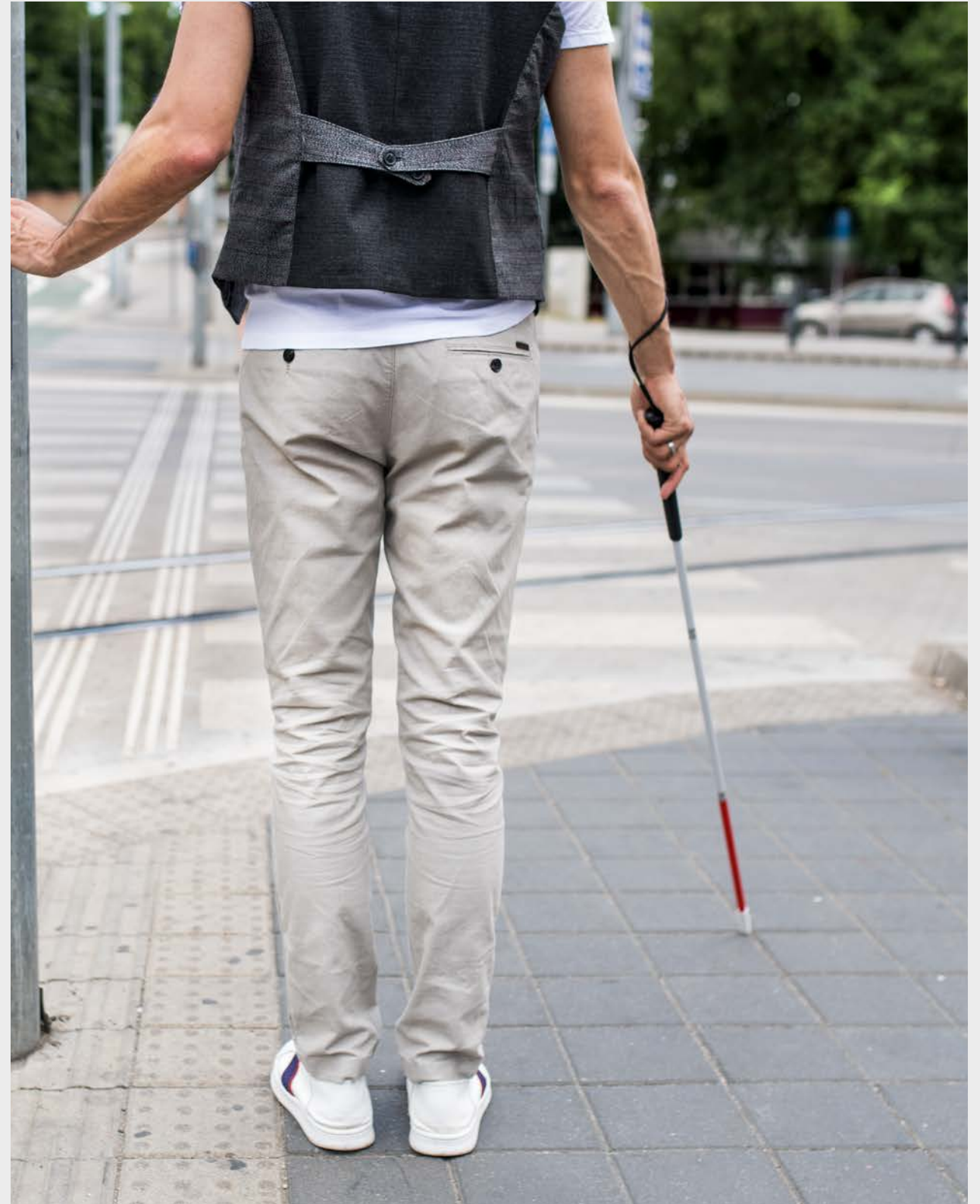
Definition of Disability

It is estimated that 1 in 7 Ontarians has a disability. In order to provide equal service to people with disabilities, it is first important to understand what a disability is. Disability can be broadly defined as a physical or mental condition that limits a person's movements, senses, or activities.

Not all disabilities are the same. A person with a disability may:

- Be deaf or have a hearing impairment.
- Be blind or have a vision impairment.
- Have an intellectual, learning, or developmental disability.
- Have a physical impairment.

In many cases, particularly in the case of a physical impairment, the disability is visible. You can see it immediately. But some types of disability are non-visible, and they are not immediately noticeable. It is important that people with non-visible disabilities receive the same quality of customer service as others. This can be accomplished by treating them with respect and consideration and by avoiding bias and stereotypes.



01 Disability Awareness

Unconscious Bias and Stereotypes

Bias is a generalization about a group of people that is based on personal characteristics or stereotypes. People are generally aware of explicit bias that arises from conscious stereotypes, but many people also hold implicit bias that stems from unconscious stereotypes. Thoughts, feelings, and judgements arising from unconscious bias are not intentional and may even be denied by those holding them because they are often in opposition to a person's conscious, expressed beliefs.

A common unconscious stereotype is that people with disabilities are incapable of living productive and fulfilling lives. This is false, but the unconscious bias may still result in fewer opportunities, such as employment offers or social invitations. In a service environment, this type of bias may cause a service provider to speak to a support person instead of directly to the disabled person, or to ignore the disabled person altogether.

Although it is unlikely that unconscious bias can be eliminated, it can be controlled through training and increased awareness. Next let's consider how services can be accessible.



01 Disability Awareness



AODA and Requirements for Service Providers

The AODA mandates that service providers must find ways to break down barriers that prevent customers with disabilities from accessing the services they need. When we think of a barrier, we may think only in terms of a tangible obstacle impeding our path, but there are five main types of barriers to accessibility:

1. Physical or architectural barriers: when features of spaces physically limit people's access to services
2. Technological barriers: when provided technology is not accessible to people with disabilities
3. Information or communication barriers: when information is not provided in formats all customers can access
4. Organizational barriers: when policies, practices or procedures discriminate against people with disabilities
5. Attitudinal barriers: when service providers do not understand how certain disabilities affect customers' lives

01 Disability Awareness

To help service providers meet their professional and legal obligations to serve diverse customers without discrimination, the AODA requires the establishment of policies that govern how goods and services will be provided to people with disabilities. Such policies must:

- Be consistent with the principles of dignity, independence, integration, and equal opportunity.
- Deal with the use of assistive devices by customers with disabilities, or the availability of other measures that allow them to obtain, use or benefit from the provider's goods and services.
- Require that communication with a disabled customer considers the person's disability.
- Allow guide dogs or other service animals entry to the premises, or to ensure other measures are in place that enable the person to obtain, use or benefit from the provider's goods and services.
- Permit a support person accompanying a disabled customer entry to the premises and provide advance notice regarding any amounts payable for admission.
- Provide public notice of any disruptions in service.
- Require that employees who deal with the public or who are involved in policy development are trained about the provision of goods and services to people with disabilities.
- Include documents that outline the provider's accessibility policies, practices, and procedures and make these documents available to any person upon request.

Why should you care if your service is accessible? It's simple: If there are barriers to passengers accessing your service, they will not be able or willing to give you their business. They may also discourage others from using your service. Not only is it beneficial for you to make your service accessible, but it is also something you are legally bound to do, because you have a duty to accommodate people with disabilities in Ontario.



Section 02

Service Provision



Common Mobility Devices

As a service provider, it is your job to ensure all customers can access the service you provide. In the case of people with disabilities, this may involve accommodating their use of assistive devices as required by the AODA.

Mobility devices are a form of assistive device used by people with disabilities to help them get around safely and on their own as much as possible. There are many types of mobility devices, but four of the more common ones are:

1. Cane and crutches support body weight and transfer workload from the legs to the upper body. A white cane identifies a person who is visually impaired.
2. Walkers are made up of a metal framework and have four legs to provide stability and support.
3. Wheelchairs are used by people who have limited use of their lower body or are unable to walk.
4. Scooters are beneficial for people with limited upper body strength or flexibility to use a manual wheelchair.

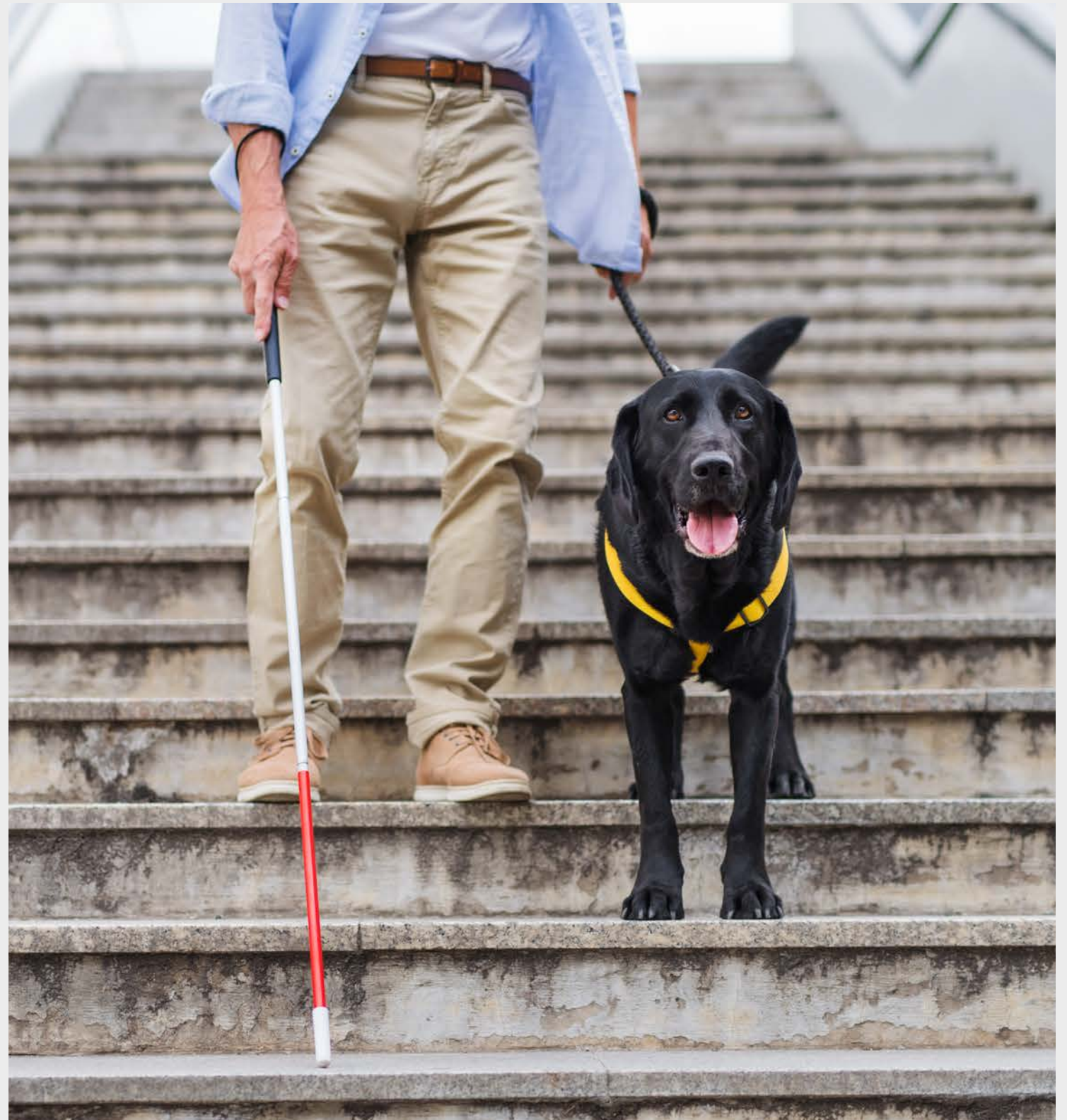
02 Service Provision

Some people with disabilities require the use of a service animal or support person. For instance, a person who has a visual impairment may have a guide dog, or a person who has a developmental disability may have a personal support person. Under the AODA, people with disabilities are permitted to always keep a service animal or support person with them. The law requires you to allow them into your vehicle.

According to the AODA, an animal is a service animal for a person with a disability:

- If it is readily apparent that the animal is used by the person for reasons relating to his or her disability.
- If the person provides a letter from a physician or nurse confirming that the person requires the animal for reasons relating to the disability.

Like mobility devices, service animals are generally mandatory. A business that denies entrance or service to customers with one of these supports is creating a barrier to service and breaking the law. Now let's discuss how to best assist passengers based on their individual needs while still respecting their abilities.





Transporting Customers with Disabilities

In general, drivers providing transportation services to passengers with disabilities should be respectful, communicate clearly, and provide physical assistance as necessary. Respect is all about putting the person before the disability. Don't assume you know your passengers' abilities or disabilities. Respond graciously to their requests, and speak directly to them when they are accompanied by a caregiver or support person. Communication should be centred around a passenger's abilities. In other words, communicate in a way that the person can understand. If you have trouble understanding what your passengers are saying, just ask them to repeat what they said. Some passengers may require you to physically assist them. This could include guiding a person with a visual disability to your vehicle or pushing a passenger's wheelchair. Before providing assistance, first ask your passenger whether help is needed. If so, then ask what kind of help he or she needs.

Disabilities are diverse, so some more specific disability etiquette follows from the United Spinal Association.

People Who Use Mobility Devices

- Don't grab the arms of people who use canes or crutches. They may need their arms for balance.
- Be prepared to help open a door, and to help reach, grasp or lift objects.
- Be aware of the person's reach limit, and place as many items as possible within it.
- Don't touch a person's wheelchair without permission. It may be considered personal space.
- Securely stow mobility devices for transport when required. Remember to ask first, explain what you are doing, and handle devices with care.

02 Service Provision

People Who Are Blind or Have Low Vision

- Offer to read important written information.
- Note obstacles, such as a big crack in the sidewalk or a half-opened door. If you give a warning, be specific.
- Identify yourself before you make physical contact. Offer your arm if someone needs to be guided. Don't grab an arm. People who are blind may need their arms for balance.
- Don't touch a person's cane or guide dog without permission. The dog is working, and the cane may be considered part of the individual's personal space.
- Count out change so that the person knows which bills are which.

People Who Are Deaf or Have Hearing Loss

- Find out whether the person prefers sign language, gesturing, writing or speaking.
- Ensure that you have the person's attention before you speak. Perhaps you can wave your hand or tap the person's shoulder.
- Face the person when you are talking, speak clearly, and avoid obscuring your mouth.
- Rephrase, rather than repeat, sentences that the person does not understand.
- If you have trouble understanding the person's speech, say so.

People With Intellectual Disabilities

- Avoid noisy or distracting settings when possible. These environments can make it difficult for the person to focus on a task or direction.
- Speak to the person as you would any other adult.
- Be clear and concise in your speech. It may be necessary to repeat a statement or rephrase it.
- Wait patiently for a response after asking a question or giving a direction. It may take time for the person to process the information and respond.

02 Service Provision

Emergency Procedures

Many organizations have emergency plans and procedures in place to be better prepared if an emergency occurs. Accessibility laws require that organizations who have emergency plans or procedures that have been made public must make the information available in an “accessible format or with appropriate communication supports, as soon as practicable, upon request.” An accessible format is an alternative to standard print and may include large print, Braille, and audio formats, such as DVDs or CDs. A communication support is a manner of communicating that helps individuals with disabilities access information. Examples include sign language, reading out loud, or using written notes to communicate. Recognizing the critical nature of emergency information, it should be provided upon request in an accessible format or with communication support as soon as possible.

Practically speaking, if an emergency happens while you are carrying a passenger with a disability, stay calm and remember that the safety and comfort of your passengers is your top priority. Different disabilities require different levels of assistance. So, as mentioned earlier, it’s important to communicate with your passenger in a way that he or she understands. Once you’ve established the best way to communicate, simply ask your passenger how you can help.

For a passenger medical incident, assess the situation to determine what type of assistance is best. If the passenger is unconscious, call 911 immediately and stay with the person until first responders arrive. If the passenger is conscious, ask whether you should call 911 or take him or her to the hospital.

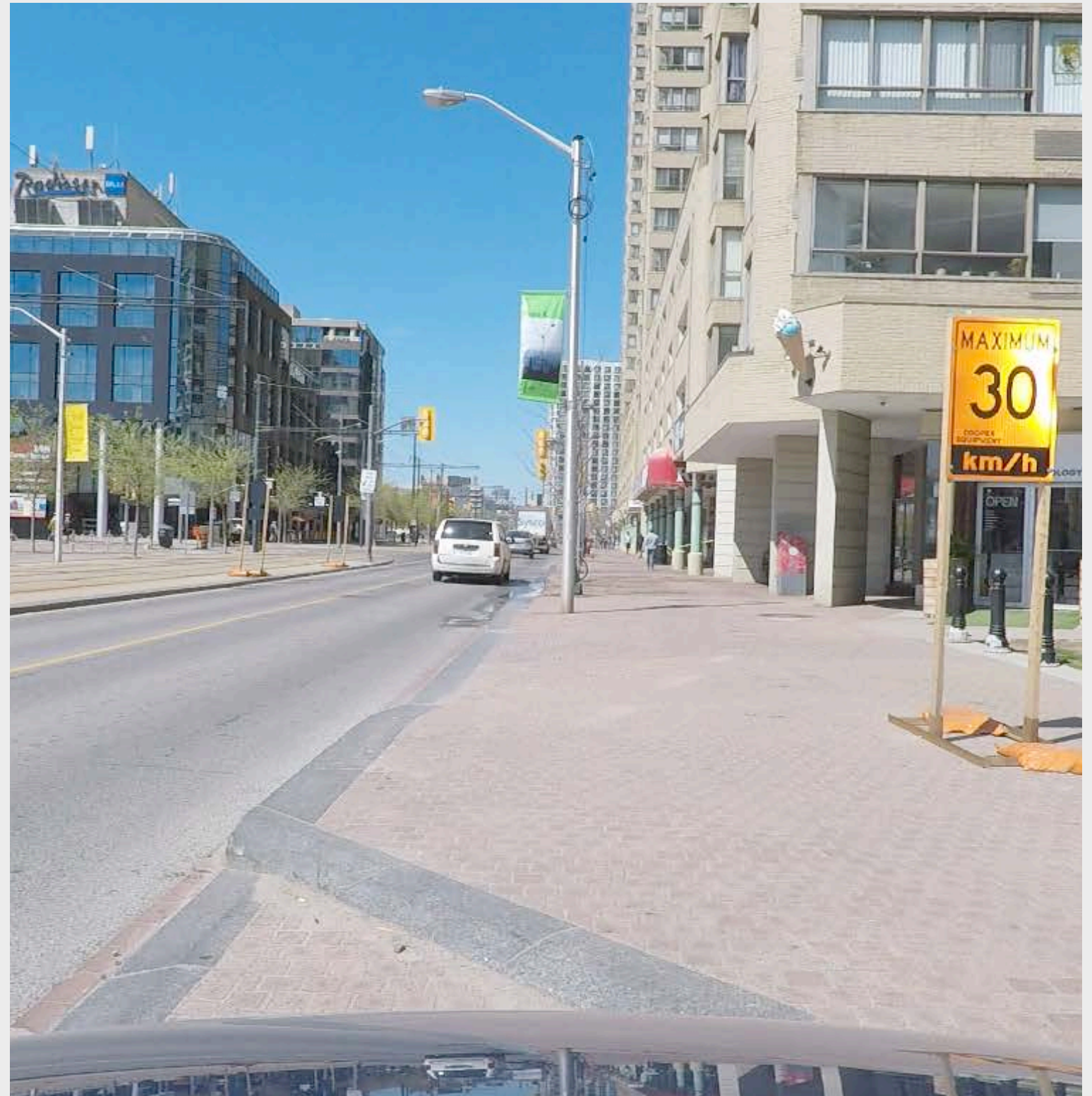


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If the medical incident is the result of an accident, the person should not be moved unless staying put is more dangerous or unless the person requests assistance to move. Wait until first responders arrive, and allow them to assess the situation. If there is a service animal in the vehicle, your passenger should determine whether it is safe for the animal to work. To help him or her make this determination, describe important parts of the scene and any hazards present. Be prepared to assist your passenger further as required.

In the case of a breakdown, try to stop the vehicle in a safe location away from live traffic, and turn on your hazard lights. Inform your passengers of the situation. If possible, arrange another vehicle for them. If passengers requiring assistance must be evacuated from the vehicle, ask them how you can help and provide the specific type of assistance they require to get them to a safe location.

Hopefully, you never face an emergency while carrying passengers with disabilities. But if you do, remember to put people before their disabilities, and don't assume that they cannot help themselves. Respect their individual needs, communicate clearly, and provide any physical assistance they require.



Consequences of Human Rights Violations

Whether in employment or in a situation where goods and services are being provided, discrimination creates a poisoned environment that can lead to Human Rights complaints and costly litigation.

Convictions for Human Rights infringements can result in restitution and compensation for money the claimant lost because of the discriminatory act and general damages for emotional injuries due to the discrimination, or both. It should also be noted that Ontario courts have the jurisdiction to award damages in civil actions for Human Rights violations.

While monetary restitution may be awarded, orders may also be issued that require actions promoting compliance with Human Rights legislation. For example, a deaf Uber customer in Ottawa complained that rides were being cancelled because he couldn't answer the driver's phone calls, and that during some trips drivers would scold him for not answering the phone or for not hearing them asking for directions en route. The restitution sought by the complaint was a change in Uber policy allowing customers to advise Uber of their disability ahead of time, so the driver can make accommodation as required.

In another case, a deaf-blind customer was refused rides on several occasions because of his service dog. Citing Human Rights and accessibility laws, the customer successfully complained to Uber who subsequently updated their policies so that drivers are now required to accommodate customers with service animals and to comply with all other accessibility laws. Violations of this policy could result in the driver's permanent loss of access to the Uber application.

Infringements related to disability may also lead to steep fines under Ontario's Accessibility laws. For instance, individuals can be fined \$2000 up to a maximum \$50,000 per day under the AODA for violations of the Act. For a corporation, the fines increase to \$15,000 up to a maximum of \$100,000 per day.

Even without a conviction, Human Rights violations can result in negative publicity or damage to a company's reputation.

The best way to avoid these types of claims is to avoid the types of discriminatory practices that lead to them. Respecting the Human Rights of others is the easiest way to accomplish this.

